

23STCV16399 23STCV16399

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 23STCV16399 Hearing Date: July 21, 2026 Dept: 731

JALEH ELGHANIAN, an individual, Plaintiff(s), vs. ABNER PARTIYELI, an individual, et al., Defendant(s).

CASE NO: 23STCV16399 [TENTATIVE] ORDER RE: PLAINTIFF JALEH ELGHANIAN'S MOTION TO: (1) CONTINUE TRIAL AND ALL RELATED DEADLINES; (2) REOPEN AND EXTEND DISCOVERY; (3) COMPEL DEPOSITIONS OF DEFENDANTS ABNER PARTIYELI AND FARSHID PARTIYELI; AND (4) IMPOSE MONETARY SANCTIONS AGAINST DEFENDANTS AND THEIR COUNSEL Dept. 731 8:30 a.m. July 21, 2026

Moving Party: Plaintiff, Jaleh Elghanian

Opposing Party: Defendants Abner Partiyeli, Farshid Partiyeli, Robertson Regency Center, LLC, 914 Holding Group LLC, Clara Industrial Holding, LLC

Notice: OK

1. Background Facts

Before the Court in a single filing are Plaintiff Jaleh Elghanian's opposed motions to continue trial, reopen and extend discovery, compel the depositions of two defendants, and corresponding requests for sanctions.

After review, the Court notes and rules as follows.

2. Preliminary Observation

The Court declines to deny the relief requested by Plaintiff based on Plaintiff combining five separate requests for relief into a single filing. (See Opposition, pp. 4, 8.) No statute or rule of court, local or state, requires that motions for the relief here requested by Plaintiff must appear in separate filings.

3. Motion to Continue Trial

Plaintiff's motion to continue trial is MOOT.

The motion was filed on May 22, 2026, and requested continuance of trial from June 15, 2026, to a future date. However, trial in this action was continued at the June 5, 2026, Final Status Conference to December 14, 2026.

Consequently, the requested relief is MOOT.

4. Motion to Reopen and Extend Discovery

Plaintiff's motion to reopen and extend discovery is DENIED.

Here, as based on a trial date of June 15, 2026, discovery in this action was cut off on May 15, 2026. (See 5/22/24 Minutes [setting trial for "11/17/25"]; 6/26/25 Minutes [by party agreement, continuing trial to 6/15/26, with cutoffs to run from new trial date]; 6/5/26 Minutes [trial continued to 12/14/26, with "[a]ll discovery cutoff dates remain[ing] with the original trial date"].)

In assessing whether to reopen discovery, courts consider "any matter relevant to the leave requested," including: (1) the necessity and the reasons for the discovery; (2) the diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier; (3) any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party; and (4) the

length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action. (Code Civ. Proc., § 2024.050, subd. (b).)

Here, Plaintiff seeks to reopen discovery to take the depositions of Defendant Abner Partiyeli and Defendant Farshid Partiyeli, for which Plaintiff first noticed depositions on April 15, 2024, more than two years before this motion was filed in May 2026. (Motion, Farivar Decl., ¶ 5, Exs. 1, 2.)

While the moving papers profess diligence in seeking these depositions (Motion, pp. 11-13), the Court is not persuaded. Simply put, Plaintiff's explanations fall short of a satisfactory answer as to why Plaintiff did not file motions for orders compelling the individual Defendants' depositions prior to the discovery cutoff.

Moreover, given that trial is currently scheduled for December 2026, it is possible that reopening discovery to take the depositions of the individual Defendants could require pushing back trial to a future date.

Under these circumstances, reopening discovery is not merited, and Plaintiff's motion for that relief is DENIED.

5. Motions to Compel Deposition

Plaintiff's motions to compel the depositions of Defendant Abner Partiyeli and Defendant Farshid Partiyeli are DENIED.

As explained in the preceding subsection, discovery was cut off on May 15, 2026. No Court-ordered depositions can move forward under these circumstances.

6. Requests for Sanctions

Plaintiff's requests for sanctions, tied to the motions to compel depositions, are DENIED as derivative of the motions to compel depositions.

Plaintiff Jaleh Elghanian is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court